

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR APRIL 30, 2026, AT 8:30 A.M.

5. S-CV-0048414 MOORE, CHARLES v. SASENBACH, ELIZABETH

If oral argument is requested, it shall be heard on **May 7, 2026, at 8:30 a.m. in Department 3.**

Plaintiff's Motion to Serve Defendant Richard Paul Gallagher Jr. and Defendant Gregory C. Sassenbach by Publication

Plaintiff moves for the court to authorize service on defendants Richard Paul Gallagher Jr. and Gregory C. Sassenbach by publication pursuant to Code of Civil Procedure section 415.50. However, plaintiff does not present sufficient evidence that these defendants cannot be served in another manner specified in the article—specifically, by mailing and acknowledgement pursuant to Code of Civil Procedure section 415.30. Accordingly, plaintiff's motion is denied without prejudice.

6. S-CV-0049276 BARBOUR, MYKEL v. CREEKSIDE TOWN CENTER

Defendant CPT Creekside Town Center, LLC's and Vestar Properties, Inc.'s Motion for Order Allowing Filing of Amended Cross-Complaint

Defendants/cross-complainants CPT Creekside Town Center, LLC and Vestar Properties, Inc.'s motion for order allowing filing of amended cross-complaint is granted. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) Defendants/cross-complainants shall file and serve the first amended cross-complaint attached to the declaration of Edward Gordon on or before **May 7, 2026.**

Defendant Professional Security Consultant Motion for Leave to File Cross-Complaint

Defendant's motion for leave to file cross-complaint is continued to **May 14, 2026, at 8:30 a.m. in Department 3.** Defendant shall file a supplemental declaration on or before **May 7, 2026**, that attaches as an exhibit the proposed cross-complaint for the court's review.

Defendant Barnes & Noble Booksellers, Inc.'s Motion for Summary Judgment

Plaintiff's request to continue the motion for summary judgment pursuant to Code of Civil Procedure section 437c, subdivision (h) is granted in light of the outstanding discovery.